

Clause 1 Preamble

1. CS GROUP-France (hereinafter the “Licensor”) holds or has been granted all the intellectual property and marketing rights on the Software.
2. The Software refers to " CS GROUP Products" whose list is accessible on: www.csgroup.eu and which are covered by a related purchase order, invoice or contract agreed between Licensor and Licensee (as defined here below).
3. The Licensor has developed the Software that is its property.
4. The entity being provided with this agreement by the Licensor (hereinafter the “Licensee”) has become aware of the use of the Software and has examined it and the way in which it operates. The Licensee has then declared to be interested in the Software and has expressed to the Licensor its will to use the Software for its own needs.
5. The Licensee represents that the Licensor has provided it with all the information it requires in order to determine whether the Software meets its requirements before entering into the Software license.
6. The Licensee acknowledges that it has the expertise, human resources and equipment required to use the Software and that it is able to use the Software under its sole responsibility.
7. **BY DOWNLOADING, INSTALLING, COPYING, OR USING THE SOFTWARE, LICENSEE HEREBY CONSENTS TO BE BOUND BY AND BECOME A PARTY TO THIS END USER LICENCE AGREEMENT.**
8. Now, therefore, the Parties have agreed as follows:

Clause 2 Definitions and interpretation

2.1 Definitions

For purposes of this agreement the following terms shall have the meanings provided below:

- “Documentation” means the documents which are delivered or made available to Licensee with the Software;
- “Initial Term” means time period between the effective date of this agreement and the initial date of its termination, Renewal Term excluded;
- “Intellectual Property Rights” means (i) patents, designs, trademarks and trade names, copyright and related rights, database rights, know-how and confidential information; (ii) all other intellectual property rights and similar or equivalent rights in the world which currently

existor are recognized in the future and (iii) applications, extensions and renewals in relation to such rights;

- “License fees” means the license charges which are set forth in this agreement;
- “Party” means either the Licensor or the Licensee;
- “Parties” means the Licensor and the Licensee;
- “Renewal Term” means the time period upon the expiry of the Initial Term through which the agreement is still in effect;
- “Site” means the geographic location where the hardware and the Software are installed;
- “Software” means the “CS GROUP products” described in the Documentation, and their technical data;
- “Use” means activate the processing capabilities of the Software, load, execute, access, employ the Software, or display information resulting from such capabilities.

2.2 Interpretation

1. The clause headings are for convenience only and shall not affect the interpretation of this agreement.
2. References to the singular include the plural and vice versa, and references to one gender include the other gender.
3. Any reference to a statute, statutory provision or subordinate legislation (together “legislation”) shall (except where the context otherwise requires) (i) be deemed to include any bye-laws, licenses, statutory instruments, rules, regulations, orders, notices, directions, consents or permissions made under that legislation and (iii) be construed as referring to any legislation which replaces, re-enacts, amends or consolidates such legislation (with or without modification) at any time.

Clause 3 Purpose

1. The purpose of this agreement is to set forth the terms and conditions under which the Licensor grants the Licensee, which accepts, the authorization to use the Software, on a nonexclusive and non-transferable basis and for its own needs.

Clause 4 Effective date - Term

1. This agreement shall become automatically effective from the date the Licensee first use the Software.
2. This agreement shall commence on the effective date and shall continue until the earlier to occur or the expiration of the license period, which is the term of the legal copyright protection of the Software, or the termination of this agreement as set forth below under article "Termination".

Clause 5 Advice and warning

1. The Licensee is solely responsible of the control and direction of the use of the Software.
2. It is up to the Licensee to check the results given by the Software in a dedicated environment and, if needed, with the methodology provided by the Licensor in its Documentation.

Clause 6 Assistance and training

1. Under this agreement, it is not agreed between the Parties that the Licensor shall ensure any assistance, training or help services in the use of the Software.
2. Subject that the Licensee has expressly ordered assistance and training, the Licensor may assist the Licensee in the use of the Software. Assistance and training services shall be specifically ordered by the Licensee and will be invoiced separately by the Licensor, in accordance with the applicable fees at the date of the order.

Clause 7 Scope of the right granted

7.1 Right to use

1. Subject to Licensee's compliance with all the terms and conditions of this agreement, the Licensor grants to the Licensee a non-transferable, non-exclusive right to use, at specified Sites and for its own needs and own purposes, the Software and its related Documentation, and the protection devices required for operation of the Software included (for example dongles), in order to exploit it within the technical environment of the Licensee.
2. It is agreed that the Licensor, under this agreement, does not supply to the Licensee the source codes of the Software.

7.2 Limits of the right to use

1. The Licensee shall not:
 - totally or partially copy or reproduce the Software and its related Documentation, whether except for one backup copy of such Software to be used exclusively for security and archival purposes;
 - modify, adapt or arrange the Software for any reasons whatsoever in particular to create a derivative or new software and/or software package;
 - decompile, disassemble the Software or let any individual under its control or in its service to decompile or disassemble the object code of the Software in any way whatsoever or to attempt to do so;
 - directly or indirectly, totally or partially transcript, translate into other languages or merge with other computer programs the Software and its related Documentation;
 - publicize or transmit to a third Party the results of studies, audits, tests, benchmark without the express written authorization of the Licensor. However, such prohibition shall not in any case adversely affect the exploitation of the Software (including the exploitation of the results produced by the Software for the Licensee's own needs);
 - directly or indirectly communicate, make available or assign the Software to a third Party, whether gratuitously or for consideration;
 - use the Software and its related Documentation in any way whatsoever to design, realize, circulate or distribute a similar, equivalent or substitute software and/or software package;
 - use the Software on a Site other than the ones described in this agreement.
 - destroy, degrade or deteriorate the protection devices included as part of the Software. In the event that a protection device that is included as part of the Software is damaged, the Licensor has the right to ask for the Licensee to pay for the new one.
2. In any case, the Licensee shall not use the Software and its related Documentation for purposes not specified in this agreement and in particular to divert the functions of the Software.
3. The Licensee shall ensure that any direct or indirect user complies with the provisions of this agreement. If the Licensee is aware of an unauthorized use or disclosure of the Software by any of the user of the Software, the Licensee shall take any steps required to stop this breach.

7.3 Open source software

1. The Software includes several open source components of which the Licensor is not the author or the editor.
2. The Licensee is informed that there is associated open source license agreement to each of such component.
3. The Licensor assures the Licensee that no open source component with contaminant license is included into the Software.
4. The rights granted to the Licensee regarding such components are the ones specified on applicable open source license agreement. The list of open source components included in the Software and their related open source license agreement is available with the Software.
5. The Licensee is informed that the Licensor will not be liable, for whatever reason, of any direct and/or indirect damages resulting from one or several open source components of which it is not the author or the editor.

Clause 8 Documentation

1. The Licensor shall provide the Licensee with all Documentation concerning the Software.
2. The Documentation shall be used in accordance with the rules applicable to the use of the Software.
3. The Documentation provided by the Licensor is written in English. The Licensee undertakes that it has sufficient skills to understand the whole Documentation.

Clause 9 Delivery and installation

1. The Software is delivered by the Licensor on a machine-readable and executable media described in the Documentation, in accordance with the hardware specifications stated in the Documentation.
2. The Licensee shall install the Software at its own risk, unless otherwise stipulated in the purchase order.
3. The Software is supplied to the Licensee « as is », without any warranty, unless stipulated in the purchase order.

Clause 10 Corrections and updates

1. Corrections and updates shall be governed by a maintenance agreement.
2. If there is no maintenance agreement signed between the Parties, no correction and no update shall be made without the express agreement of the Parties, in particular on the financial terms applicable to the Licensor's services.
3. In any case, the Licensee shall not be authorized to correct the errors that may affect the Software.

Clause 11 Environment and Site

1. The Licensee shall choose and procure hardware in compliance with its needs and the Software, unless otherwise stipulated in the purchase order.
2. The Licensee agrees not to install the Software on technical devices which would be stated on the Documentation as inappropriate for Use or non-interoperable with the Software.
3. The Licensee expressly agrees to use the Software only on the environment and in the Site(s) respectively described in the Documentation and in the agreed Site.
4. Where applicable, the Licensee shall notify the Licensor by registered letter return receipt requested of its intent to modify the location of the Site.

Clause 12 Sub-licensing

1. The Licensee undertakes not to grant any sub-licence in respect of the Software to any Party whatsoever and not to grant any third Party, even without charge, the right to use the Software without the express, prior, written permission of the Licensor.
2. In the event permission is granted by the Licensor, both the third Party involved and the terms of the sub-licence agreement shall be subject to the express, prior, written approval of the Licensor.

Clause 13 Financial terms

1. The amount of the fee to be paid to use the Software is determined either directly with Licensor or its local representative/reseller. Except as otherwise specified, the fee covers (i) the Software license (ii) and the services realized under the contractual warranty, if required.
2. The fee is subject to the invoicing and payment conditions determined either directly with Licensor or its local representative/reseller.
3. The Licensee acknowledges having been informed that the Software is delivered with a temporary key, allowing its use under the terms and conditions of this agreement, until full payment of the Software license fee.
4. When the full payment of the Software license fee by the due date is performed, the Licensor will deliver a permanent key, allowing its use under the terms and conditions of this agreement, for its duration.
5. In the event of non-payment or partial payment of the invoice related to the Software license fee, by the due date, the Licensor may be authorized to suspend the license, after a grace period of fifteen (15) calendar days, until the full payment of the Software license fee is received from the Licensee,
6. If non-payment or partial payment exceeds six months, the Licensor may be authorized to terminate the agreement, as set forth below under article "Termination". Payments received by the Licensor shall be deemed acquired by the Licensor.

Clause 14 Warranties

1. The Licensee acknowledges that it has been previously informed of the fact that the Software is supplied "as is", without any special warranty with regard to its use, functionalities, security and/or performances, unless otherwise stipulated in the purchase order.
2. The Licensor does not in any case warrant that the Software will operate uninterrupted or that it will be free from minor defects or errors that do not materially affect such performance, or that it meets the need of the Licensee, or that it is compatible with the hardware of the Licensee if the Licensee did not seek advice from the Licensor on the Software configuration in advance.
3. The Licensee shall be solely liable for the operation of the Software.
4. The Parties should conclude an agreement for the maintenance of the Software.

Clause 15 New versions

1. The Licensor may propose to the Licensee the delivery of new versions of the Software which will be invoiced separately.
2. The delivery of a new version of the Software shall be completed by an agreement for the maintenance of the Software.
3. The terms and conditions of the present agreement shall apply to any new version of the Software.

Clause 16 Liability

1. The Parties jointly agree that the Licensor is responsible only for the consequences of direct damage.
2. The Licensee acknowledges and agrees that the Licensor shall not be liable for:
 - i. indirect damages, such as financial or commercial damages, loss of clientele or savings, any commercial trouble, increase of costs and business expenses, loss of profit, loss of corporate image, any delay or disruption of the planning of the project or of Licensee's activities, loss of data, loss of files or any computer programs, that could result from the non-performance of this agreement;
 - ii. direct damages arising out of a use of the Software which is not in accordance with this agreement or the Documentation.
3. It is reminded that the Licensor is not the owner of the data (scenario, models, geographical data, etc) that may be produced or added by the Licensee and is under no circumstances responsible for their quality or legality.
4. In any case, to the extent permitted by law, the Licensor's liability shall not exceed the amounts of the fees paid by the Licensee.
5. In line with clause "Warranties" of this agreement, the Licensee acknowledges and agrees that the Licensor shall not be liable for direct or indirect damage inter alia arising out of:
 - i. an interruption in the operation of the Software;
 - ii. a performance or security defect in the Software;
 - iii. the fact that the Software does not meet the needs of the Licensee.
6. The provisions of this agreement allocate the risks between the Licensor and the Licensee.

The license fees reflect this allocation of risk and the limitations of liability herein.

Clause 17 Intellectual property

1. The right to use granted by the Licensor in the present license agreement does not result in any transfer of Intellectual Property right to the Licensee.
2. In consequence, the Licensee undertakes not to infringe, either directly or indirectly or via a third Party with which it is associated, upon the Licensor's Intellectual Property Rights. The Licensee undertakes to take all the requisite measures in order to protect the Licensor's Intellectual Property Rights. In this respect, it shall:
 - ensure that all Intellectual Property Rights mentioned on the Software remain legible, identifiable and in good condition;
 - not suppress or conceal any trademark, copyright, logo, any other property notices or documentation of the Software, regardless of whether in installed or installable version.
3. The Licensee shall promptly notify the Licensor of any attempted seizure, raise any objection thereto and take all measures to give notice of the Licensor's Intellectual Property Rights.
4. The Licensee represents that it owns the necessary rights in the hardware and shall not install and use the Software on mobile hardware or on hardware it does not own and which are not subject to a long-term lease.
5. The Licensor shall indemnify and hold the Licensee harmless from and against any action for infringement.
6. As a result, the Licensor undertakes to take part in any actions initiated against the Licensee claiming that the use of the Software infringes copyright of a third Party. This warranty is subject to the following express conditions:
 - the Licensor is given prompt written notice of such claim by the Licensee;
 - the Licensee provides faithful cooperation to the Licensor in the defense and settlement of such claim by providing all the requisite elements, information and assistance in order to successfully ensure such defense;
 - the Licensor is given sole authority to defend or settle any action regarding any such third Party infringement claim on behalf of and in the name of the Licensee;
 - the Licensee shall not agree to any settlement regarding any third Party infringement claim, or make any admission or take or fail to take any action, in each case, where such admission, action, or failure to act could reasonably be expected to prejudice the defense of such third Party infringement claim, in each case without the prior written consent of the Licensor.

7. If the use of the Software is prohibited as the result of a final court decision or a settlement agreement signed with the plaintiff, the Licensor shall, at its option and expense:
 - procure for the Licensee the right to continue using the Software;
 - replace the infringing element by an equivalent non-infringing element;
 - modify the infringing element so that it becomes non-infringing.
8. In any case, the Licensor shall pay any damages that may be awarded against the Licensee by virtue of a final court decision solely on an established act of copyright infringement.
9. Any modification of the Software without the prior written agreement of the Licensor or any use of the Software which is not in compliance with the Documentation shall automatically exclude the application of this warranty.
10. The above provisions set forth the entire liability of the Licensor as regards the infringement of intellectual property rights as a result of said use.

Clause 18 Audit

1. The Licensor reserves the right to audit, itself or with the intervention of a third Party auditor designated by the Licensor, the usage of the Software and its compliance with this agreement and the Documentation, either on-site or remote, at least once annually.
2. The Licensee shall cooperate reasonably in the conduct of such audit.
3. In the event an audit reveals that the Licensee has not used the Software in compliance with this agreement and/or the Documentation, the Licensee shall pay reasonable costs of the Licensor's audit and the Licensor may immediately and ipso jure terminate the agreement to the sole prejudice of the Licensee, without prejudice for the Licensor to any damages to which it may be entitled.

Clause 19 Termination

19.1 Termination for breach

1. Should either Party materially breach its obligations under the agreement, the other Party may give it formal notice to remedy the breach within a maximum period of fifteen (15) calendar days, by registered letter with acknowledgement of receipt.
2. If, at the end of this period of fifteen (15) calendar days, the breach has not been remedied,

the other Party may ipso jure terminate the agreement, without any other formality, by registered letter with acknowledgement of receipt, without prejudice to any damages to which it may be entitled.

19.2 Effect of termination

1. Termination of this agreement however caused shall be without prejudice to any rights or liabilities accrued at the date of termination. The termination of this agreement for whatever cause shall not affect any provision of this agreement which is expressed or by implication intended to survive or operate in the event of termination of this agreement.
2. Upon termination of this agreement the Licensee shall immediately pay any outstanding invoices to the Licensor.
3. Upon the termination of this agreement for any reason whatsoever, the Licensee will immediately cease the use of the Software, destroy all the copies of the Software it has in its possession and return the protection devices required for operation of the Software included.

Clause 20 Bona fide

1. The Parties agree to perform their obligations with utmost good faith.

Clause 21 Export Control

The Software, including their technical data, may be subject to French, European Union and U.S. export controls and may be subject to import or export controls in other countries. Licensee agrees to strictly comply with all applicable import and export laws and regulations. Specifically, Licensee agrees, to the extent required by U.S. Export Administration Regulations, that Licensee shall not disclose or otherwise export, re-export, retransfer, or transmit the Software or any part thereof delivered under this agreement to any country (including a national or resident of such country) to which the U.S. has restricted or prohibited the export of goods or services or mentioned on any similar lists maintained by other countries, without the necessary export license(s) or authorization(s). Licensee represent and warrant that it is not (i) located in any country that is subject to a U.S. Government or EU embargo, or that has been designated by the U.S. Government as a "terrorist sponsoring" country, or (ii) listed on any U.S. Government list of prohibited or restricted parties including the Treasury Department's list of Specially Designated Nationals or the U.S. Department of Commerce Denied Person's List or EntityList.

Licensor and Licensee each agree to provide the other information, support documents, and assistance as may reasonably be required by the other in connection with securing authorizations or

licenses.

Clause 22 Non Waiver

1. The failure of a Party to exercise or enforce any right under this agreement shall not be deemed to be a waiver of that right nor operate to bar the exercise or enforcement of it at any time or times thereafter.

Clause 23 Sincerity

1. The Parties thus represent that they do not know any elements which, had it been disclosed, would have modified the consent of the other Party.

Clause 24 No agency

1. The Parties acknowledge that they each act for their own account as independent contractors and shall not be considered as the agent of the other.
2. Nothing in this agreement is intended to constitute a partnership, franchise, joint venture or agency relationship.
3. Neither Party may contract for and on behalf of the other.
4. Furthermore, each Party remains solely responsible for its/his/her own acts, assertions, commitments and services.

Clause 25 Assignment

1. The Parties shall not assign or otherwise transfer all or any of its rights and obligations under this agreement without the Parties' prior written consent.

Clause 26 Headings

1. In the event a difficulty of interpretation arises out of a contradiction between any of the section headings and the content of the sections, the headings shall be deemed to be non-existent.

Clause 27 Severability

1. If one or more provisions of this agreement were to be held invalid or so declared by a law, a regulation or a final decision having res judicata effect rendered by a court having proper jurisdiction, the other provisions shall remain in full force and effect.
2. The Parties agree to substitute for any such invalid, illegal, or unenforceable provision a new provision which serves the purpose of the invalid provision to the furthest possible extent.

Clause 28 Entire agreement

1. This agreement supersedes all prior agreements, arrangements and undertakings between the Parties and constitutes the entire agreement between the Parties relating to the subject matter of this agreement. However the obligations of the Parties under any pre-existing non-disclosure agreement shall remain in full force and effect in so far as there is no conflict between the same. The Licensee confirms that it has not entered into this agreement on the basis of any representation that is not expressly incorporated into this agreement.

Clause 29 Notices

1. Any notice given under this agreement shall be in writing and signed by or on behalf of the Party giving it and shall be served by delivering it personally, or sending it by pre-paid recorded delivery or registered post to the relevant Party at its registered office for the time being its last known address, or by sending it by confirmed fax to the fax number notified by the relevant Party to the other Party. Any such notice shall be deemed to have been received:
 - if delivered personally, at the time of delivery;
 - in the case of pre-paid recorded delivery or registered post, 48 hours from the date of posting; and
 - in the case of fax, at the time of transmission.

2. In proving such service it shall be sufficient to prove that the envelope containing such notice was addressed to the address of the relevant Party and delivered either to that address or into the custody of the postal authorities as a pre-paid recorded delivery or registered post or that the notice was transmitted by fax to the fax number of the relevant Party.

Clause 30 Governing Law

1. This agreement shall be governed by French law.
2. Such law shall apply to both form and substance, notwithstanding the place of application of substantial and non-substantial obligations.

Clause 31 Jurisdiction

IN THE EVENT OF A DISPUTE, IF NO AMICABLE SETTLEMENT CAN BE FOUND WITHIN A PERIOD OF 15 DAYS FROM THE NOTIFICATION OF THE DISPUTE, IT IS EXPRESSLY AGREED THAT THE INTERNATIONAL LITIGATION CHAMBER OF THE NANTERRE COMMERCIAL COURT (FRANCE) SHALL HAVE JURISDICTION, EVEN IN THE EVENT THERE IS MORE THAN ONE DEFENDANT OR IN CASE OF A THIRD-PARTY PROCEEDINGS, INCLUDING IN CASE OF URGENT PROCEEDINGS, PROTECTIVE MEASURES, SUMMARY PROCEEDINGS OR AN *EX PARTE* APPLICATION.